

SUBSIDIARY LEGISLATION 217.17

SINGLE APPLICATION PROCEDURE FOR A SINGLE PERMIT AS REGARDS RESIDENCE AND WORK AND A COMMON SET OF RIGHTS FOR THOSE THIRD-COUNTRY WORKERS LEGALLY RESIDING IN MALTA REGULATIONS

16th May, 2014

LEGAL NOTICE 160 of 2014.

PART I GENERAL PROVISIONS

1. (1) The title of these regulations is Single Application Procedure for a Single Permit as regards Residence and Work and a Common Set of Rights for those Third-Country Workers legally residing in Malta Regulations. Citation and scope.

(2) These regulations transpose the provisions of Council Directive 2011/98/EC of the 13th December 2011 regarding a single application procedure for a single permit for third-country nationals to reside and work in the territory of a Member State and on a common set of rights for those third-country workers legally residing in a Member State.

(3) The objective of these regulations is to determine:

- (a) a single application procedure for issuing a single permit for third-country nationals to reside for the purpose of work in Malta in order to simplify the procedures for their admission and to facilitate the control of their status; and
- (b) a common set of rights to third-country workers legally residing in Malta, irrespective of the purposes for which they were initially admitted in Malta, based on equal treatment with Maltese nationals as provided for in Part III of these Regulations.

(4) These regulations shall apply without prejudice to more favourable provisions of:

- (a) Union law, including bilateral and multilateral agreements between the Union, or the Union and its Member States on the one hand, and one or more third countries on the other; and
- (b) bilateral or multilateral agreements between Malta or other Member States and one or more third countries.

2. For the purpose of these regulations:

"Act" means the Immigration Act;

Interpretation.

Cap. 217.

"Board" means the Immigration Appeals Board constituted by article 25A of the Act;

"Director" means the Director for Citizenship and Expatriate Affairs and who is the authority competent to receive the application and to issue the single permit;

"Member State" means any Member State of the European Union, including Malta;

"single permit" means a residence permit issued by the Director allowing a third-country national to reside legally in Malta for the purpose of work;

"single application procedure" means any procedure leading, on the basis of a single application made by a third-country national and endorsed by his employer for the authorisation of residence and work in Malta, to a decision ruling on that application for the single permit;

"third-country national" means any person who is not a citizen of the European Union within the meaning of Article 20(1) of the Treaty on the Functioning of the European Union;

"third-country worker" means a third-country national admitted to Malta and who is legally residing and is allowed to work in the context of a paid relationship and is protected as an employee under the Employment and Industrial Relations Act and in accordance with national practice.

Cap. 452.

Application.

3. These regulations shall apply to:

- (a) third-country nationals who apply to reside in Malta for the purpose of work;
- (b) third-country nationals who have been admitted to Malta for the purposes other than work in accordance with European Union or Maltese legislation and who are allowed to work and who hold a residence permit in accordance with Regulation (EC) No 1030/2002; and
- (c) third-country nationals who have been admitted to Malta for the purpose of work in accordance with European Union or Maltese legislation.

Non-applicability.

4. These regulations shall not apply to third-country nationals:

- (a) who are family members of Union citizens who have exercised, or are exercising, their right to free movement within the Community in conformity with Directive 2004/38/EC of the European Parliament and of the Council of 29 April 2004 on the right of citizens of the Union and their family members to move and reside freely within the territory of the Member States or have exercised their right of free movement in Malta in accordance with the Free Movement of European Union Nationals and their Family Members

L.S. 460.17.

Order;

- (b) family members, whatever their nationality, who enjoy rights of free movement equivalent to those of citizens of the Union under agreements between the Community and the Member States and those of Union citizens;
- (c) who are posted for as long as they are posted;
- (d) who have applied for admission or have been admitted to Malta to work as intra-corporate transferees;
- (e) who have applied for admission or have been admitted to Malta as seasonal workers or *au pairs*;
- (f) who are authorised to reside in a Member State on the basis of temporary protection or have applied for authorization to reside on that basis and are awaiting a decision on their status;
- (g) who are beneficiaries of international protection under Council Directive 2004/83/EC of 29 April 2004 on minimum standards for the qualification and status of third-country nationals or stateless persons as refugees or as persons who otherwise need international protection and the content of the protection granted and the International Protection Act and regulations made thereunder, or have applied for international protection under the Directive and under the said International Protection Act and regulations made thereunder and whose application has not yet given rise to a final decision; Cap. 420.
- (h) who are beneficiaries of protection in accordance with national law or practice, or international obligations, or have applied for protection in accordance with national law or practice, or international obligations, and whose application has not given rise to a final decision;
- (i) who enjoy EC long-term resident status in a Member State in accordance with Directive 2003/109/EC and the provisions of the status of Long-term Residents (Third-Country Nationals) Regulations and exercise their right to reside in Malta in order to carry out an economic activity in an employed or self-employed capacity; S.L. 217.05
- (j) whose removal has been suspended for reasons of fact or law;
- (k) who have applied for admission or who have been admitted to Malta as self-employed workers;
- (l) who have applied for admission or have been admitted as seafarers for employment or work in any capacity on board a ship registered in or sailing under the flag of a Member State.

Non-applicability
of Part II.

5. Part II of these regulations shall not apply to third country nationals who:

S.L. 217.09

- (a) have been admitted to Malta for the purpose of studies in accordance with the provisions of the Conditions of Admission of Third Country Nationals for the purposes of Studies Regulations;
- (b) have been authorised to work in Malta for a period not exceeding six months;
- (c) are allowed to work in Malta on the basis of a visa.

PART II

SINGLE APPLICATION PROCEDURE AND SINGLE PERMIT

Application
procedure.

6. An application to issue, amend or renew a single permit shall be submitted by way of a single application procedure.

Endorsement of
application.

7. (1) A third-country national shall submit to the Director an application for a single permit endorsed by his employer and all relevant documentation.

(2) The Director shall provide, upon request, adequate information to the third country national and the prospective employer on the documents required to make a complete application.

Submission of
application.

8. (1) The third-country national may submit the application either from:

- (a) the territory of a third country;
- (b) the territory of Malta; or
- (c) that of a Member State in which he is legally present.

Requirements.

9. The Director shall examine an application made under regulations 6 and 7 and shall adopt a decision to issue, amend or renew the single permit if the applicant fulfils the requirements specified by Union or Maltese legislation and such a decision shall constitute a single administrative act combining a residence permit and a work permit.

Single application
procedure.

10. The single application procedure shall be without prejudice to the visa procedure which may be required for initial entry.

Single permit.

11. The Director shall issue a single permit, where the conditions provided for are met, to third-country nationals who apply for admission and to third-country nationals already admitted who apply to renew or modify their residence permit after the coming into force of these regulations.

Adoption of
decision.

12. Following the necessary internal consultations with the pertinent authorities as to whether the third-country national has been granted permission to work in Malta in accordance with article 11(3) of the Act, whereby the pertinent authorities shall assess such application on the basis of labour market requirements, established volumes of admission, or any other exceptional circumstances that may be deemed justified, the Director shall

adopt a decision on the complete application, as soon as possible, and in any event within four months of the date on which the application was lodged:

Provided that this time limit may be extended in exceptional circumstances linked to the complexity of the examination of the application.

13. The Director shall consider an application as inadmissible, on the grounds of volumes of admission of third country nationals coming to Malta for the purposes of employment and, on that basis, need not process the application.

Inadmissibility of application.

14. In the event that the Director fails to give a decision within the period specified in regulation 12, the application shall automatically be passed on for appeal to the Board.

Failure to give decision.

15. The Director shall notify the decision on the application to the applicant in writing.

Notification.

16. (1) If the information or documents in support of the application are incomplete, the Director shall notify the applicant in writing of the additional information or documents required, setting a reasonable deadline for the applicant to provide them and, in such case, the time limit referred to in regulation 12 shall be suspended until the Director has received the additional information.

Incomplete application.

(2) The Director may reject an application if the additional information or documents referred to in sub-regulation (1) are not provided within the deadline set out in that sub-regulation.

17. The Director shall issue a single permit using the uniform format laid down in Regulation (EC) No 1030/2002 and shall indicate the information relating to the permission to work in accordance with point (a) 7. 5-9 of the Annex thereto:

Format of single permit.

Provided that the Director may indicate additional information, as directed by the pertinent authorities, related to the employment relationship of the third-country national including the name and address of the employer, place of work, type of work, working hours and the remuneration, in paper format, or store such data in electronic format as referred to in Regulation (EC) 1030/2002.

18. The third-country national shall not require an additional permit in order to work in Malta for the purpose of employment that has been authorised by the document referred to in the preceding regulation.

Additional permit.

19. Without prejudice to the relevant provisions of these regulations, the Director, when issuing a residence permit in the format established by Regulation (EC) No 1030/2002 for purposes other than work, shall apply the provisions of regulation 16 and regulation 17.

Format of residence permit.

20. (1) The Director shall give reasons, in the notifications referred to in regulation 15 when rejecting an application to issue,

Rejections.

amend or renew a single permit or when a decision is taken withdrawing a single permit.

(2) Where the Director has refused an application for the issue, amendment or renewal of a single permit or has withdrawn such permit, the third country national shall have the right to appeal to the Board.

Updated set of information.

21. The Director or any other relevant authority shall make available to the general public a regularly updated set of information concerning the conditions of third country nationals' admission to, and residence in, Malta for the purposes of work.

PART III RIGHTS

Holder's rights.

22. The holder of a single permit issued in accordance with the provisions of these regulations during its validity, shall be entitled at least to:

- (a) enter and reside in Malta provided that the holder meets all admission requirements in accordance with Maltese legislation;
- (b) have free access to the entire territory of Malta within the limits provided for by Maltese legislation;
- (c) exercise the specific employment activity authorised under the single permit in accordance with Maltese legislation; and
- (d) be informed about his rights linked to the permit conferred by EU law and by Maltese legislation.

Rights of Director.

23. Without prejudice to the right of the Director to withdraw or refuse to renew a residence permit issued under these regulations, or a residence permit issued for purposes other than work, or any other authorisation by a pertinent authority to work in Malta, third-country workers as referred to in regulation 3(b) and (c) shall enjoy equal treatment with Maltese nationals with regard to:

- (a) working conditions, including pay and dismissal as well as health and safety at the workplace;
- (b) freedom of association and affiliation and membership of an organisation representing workers or employers of any organisation whose members are engaged in a specific occupation, including the benefits conferred by such organisations, without prejudice to the national provisions on public policy and public security;
- (c) education and vocational training:

Provided that such equal treatment shall apply only to third country workers who are in employment or who have been employed and who are registered as unemployed in Malta and shall not:

- (i) include study and maintenance grants and loans

or other grants and loans;

- (ii) be given to third-country nationals who have been admitted to Malta in accordance with the provisions of Conditions of Admission of Third Country Nationals for the purposes of Studies Regulations: S.L. 217.09

Provided that as regards to payment of tuition fees and language proficiency, with respect to access to university and post-secondary education and to vocational training which is not directly linked to the specific employment activity, the specific prerequisites in national legislation shall apply;

- (d) recognition of diplomas, certificates, and professional qualifications in accordance with Maltese legislation;
- (e) branches of social security, as defined in Article 3 of Regulation (EC) No 883/2004:

Provided that such equal treatment as regards the rights set out in the said Regulation shall apply only to third-country workers who are in employment or who have been in employment for a minimum period of six months and who are registered as unemployed:

Provided further that family benefits payable under the provisions of the Social Security Act shall not apply to third-country nationals who: Cap. 318.

- (i) have been authorised to work in Malta for a period not exceeding six months;
- (ii) have been admitted for the purpose of study, or
- (iii) are allowed to work on the basis of a visa:

Provided further that, third-country workers moving to a third country, or their survivors who reside in a third country and who derive rights from those workers, shall receive, in relation to old age, invalidity and death, statutory pensions based on the third country workers' previous employment and acquired in accordance with the Social Security Act under the same conditions and at the same rates as Maltese nationals receive when moving to a third country; Cap. 318.

- (f) tax benefits, insofar as the worker is deemed to be resident for tax purposes in Malta:

Provided that such equal treatment shall apply to cases where the third country worker's situation of residence is the same as that obtaining for a Maltese national in the same situation;

- (g) access to goods and services and the supply of goods and services made available to the public, excluding access to housing:

Provided that such equal treatment shall apply only to third country workers who are in employment and

- shall be without prejudice to the freedom of contract in
accordance with Community and Maltese legislation;
- (h) advice services afforded by employment offices.
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